

MyHOAAppeal - Educational worksheet

After the HOA Hearing: Next Steps for Homeowners

Educational use only. Not legal advice. Verify against your CC&Rs and state law.

== VISUAL SUMMARY ==

Five takeaways to remember about written decisions, deadlines, and escalation. Use them as a one-page briefing before you write or speak.

- * Start with procedure: Map notice, cure, hearing, and decision duties before debating the aesthetics of written decisions, deadlines, and escalation.
- * Make the decision point explicit: Your appeal should answer what to do after the board rules with exhibits, not adjectives.
- * Compare options deliberately: Know whether you are closer to Win / reduction, Denial, or No written decision before you escalate.
- * Write one remedy sentence: Boards skim-state waive, reduce, re-notice, or reverse in a single line tied to written decisions, deadlines, and escalation.
- * Keep escalation proportionate: Match collections risk and dollar amount to mediation, counsel, or court only after the packet is sent.

== PROCESS FLOW ==

1. Capture the trigger

Save the notice, portal message, invoice, or verbal summary that started the dispute about written decisions, deadlines, and escalation. Note the date received.

2. Pull controlling text

Locate the statute, CC&R, rule, and fine-schedule language that supposedly authorizes action on written decisions, deadlines, and escalation.

3. Build the evidence spine

Assemble dated photos, correspondence, ledgers, and comparables that speak directly to what to do after the board rules.

4. Choose the procedural path

Pick cure, informal dispute, formal hearing, payment under protest, ADR, or counsel based on deadlines and stakes around written decisions, deadlines, and escalation.

5. Submit a written ask

Send one clear remedy request (waive, reduce, re-notice, or reverse) tied to what to do after the board rules, with exhibits attached.

6. Confirm the outcome in writing

Demand or calendar a written decision, update your ledger notes, and decide whether escalation is still proportionate.

== CHECKLIST ==

Documents on hand

- ☐ Written notice or invoice tied to written decisions, deadlines, and escalation
- ☐ Current CC&Rs, rules, and fine schedule excerpts
- ☐ Delivery proof (certified mail, portal export, or email headers)

Evidence quality

- ☐ Dated materials that address what to do after the board rules
- ☐ One-page timeline of key events
- ☐ Exhibit index with short labels (A, B, C...)

Procedural safeguards

- ☐ Appeal / cure / hearing deadline calendared
- ☐ Clear written remedy (waive, reduce, re-notice, reverse)
- ☐ Plan for payment under protest if lien pressure rises

Before you stop working the file

- ☐ Confirm whether win / reduction or denial better describes your posture
- ☐ Save a PDF export of the full packet
- ☐ Note any verbal promises in a same-day email

== TIMELINE ==

Trigger / notice | Day 0

Violation letter, invoice, or demand referencing written decisions, deadlines, and escalation arrives.

Document pull | Days 0-3

Gather CC&Rs, schedules, and records that control what to do after the board rules.

Cure or early response | Per notice (often 7-14 days)

Cure if appropriate; otherwise send a written dispute preserving hearing rights.

Hearing / board review | Often 2-6 weeks after request

Present indexed exhibits focused on written decisions, deadlines, and escalation; ask for a written decision.

Written decision | Promptly after hearing (document-driven)

Confirm outcome in writing; calendar any post-decision deadlines.

Escalation fork | After denial or silence

Choose payment under protest, ADR, counsel, or court based on stakes around written decisions, deadlines, and escalation.

== DECISION TREE (print path) ==

Use this yes/no path to decide your next action on written decisions, deadlines, and escalation. Outcomes are educational starting points-confirm against your CC&Rs and state law.

Q (start): Do you already have written materials covering written decisions, deadlines, and escalation?

- Yes - I have notices or governing excerpts -> go to quality
- No - I am starting from a verbal warning or rumor -> go to collect

Q (collect): Can you obtain the written notice, fine schedule, and relevant CC&R/rule pages within 48 hours?

- Yes - I can request or download them -> Request the file in writing today, then re-run this tree for written decisions, deadlines, and escalation. Do not rely on memory alone.
- No - the association will not provide records -> Send a dated records request, keep delivery proof, and note the refusal in your appeal packet about written decisions, deadlines, and escalation.

Q (quality): Does your packet clearly address what to do after the board rules?

- Yes - defects and facts are indexed -> go to deadline
- Not yet - gaps remain -> Fill gaps with dated exhibits before you argue written decisions, deadlines, and escalation. Incomplete packets invite denials on procedure.

Q (deadline): Is an appeal, cure, or response deadline still open?

- Yes - time remains -> Calendar the deadline, submit a written position on written decisions, deadlines, and escalation, and request a hearing or written decision in the same letter.
- Unsure / possibly missed -> Ask in writing for the controlling deadline and whether late submissions are accepted. Preserve written decisions, deadlines, and escalation arguments even while clarifying timing.
- No - the window closed -> Document why the window was missed (late notice, portal failure, etc.) and escalate via payment-under-protest, mediation, or counsel depending on stakes.

== COMPARISON SNAPSHOT ==

Columns: Win / reduction | Denial | No written decision

Typical signal

[Win / reduction] Clear written basis for win / reduction

[Denial] Partial or contested basis for denial

[No written decision] High risk if you only have no written decision

Owner priority

[Win / reduction] Preserve win / reduction with indexed proof

[Denial] Convert denial into a documented record

[No written decision] Do not rely on no written decision alone

Board / manager reaction

[Win / reduction] Harder to dismiss when exhibits are complete

[Denial] May stall or ask for more information

[No written decision] Often treated as insufficient without follow-up writing

Next educational move

[Win / reduction] Advance the formal path for written decisions, deadlines, and escalation

[Denial] Send a clarifying letter addressing what to do after the board rules

[No written decision] Collect missing documents before arguing substance

Escalation risk if ignored

[Win / reduction] Lower if you stay on deadline

[Denial] Medium - ambiguity can harden into denial

[No written decision] Higher - no written decision gaps feed collections narratives

Generated for educational purposes by MyHOAAppeal.